

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

CABINET SECRETARIAT

(Cabinet Division)

NOTIFICATIONS

Rawalpindi, the 10th April, 1975

S. R. O. 411 (I)/75.— In exercise of the power conferred by section 30 of the Abandoned Properties (Taking over and Management) Act, 1975 (XX of 1975), the Federal Government is pleased to make the following rules, namely:—

1. Short title and commencement.—(1) These rules may be called the Abandoned Properties (Taking over and Management) Rules, 1975.

(2) They shall come into force at once.

2. Definitions.—In these rules, unless there is anything repugnant in the subject or context,—

- (a) "Act" means the Abandoned Properties (Taking Over and Management) Act, 1975 (XX of 1975);
- (b) "section" means sections of the Act; and
- (c) words and expressions used but not defined in these rules shall have the meaning assigned to them in the Act.

3. Conditions of service of the Administrator, etc.—(1) The Administrator appointed under the Act shall be an officer in Grade 20 and the Deputy Administrators so appointed shall be either in Grade 18 or 19 of the National Pay Scales.

(2) All officers appointed under the Act shall, subject to any special contract to the contrary, be governed by the rules applicable to the grade of officers to which they belong.

4. **Allocation of functions.**—Subject to the provisions of the Act, the Federal Government may, by general or special order, provide for the allocation or distribution of functions to be performed by the Administrator and Deputy Administrators.

5. **Entry and search of abandoned property.**—The Administrator or any person authorised by him in this behalf may:—

- (a) enter and inspect any land and premises if he has reason to believe that it is an abandoned property;
- (b) search any building or place in which he has reason to believe there is any abandoned property or any document tending to show, that any person is a specified person, is being concealed, and take possession thereof;
- (c) if the premises where entry is required to be made is locked, break open that lock and search the premises; and
- (d) after effecting entry into the premises, take possession of the abandoned property in accordance with the provisions of rule 6.

6. **Taking possession of abandoned property.**—Where any abandoned property is to be taken possession of, the Administrator or any person authorised by him in this behalf may take possession:—

- (a) if the property is immovable property, by evicting the person in possession, supervision or management thereof, or by sealing the premises, or by serving on such person a notice directing him to pay the rent, lease money or licence fee, as the case may be, to the Administrator or to any person duly authorised to receive such payment;
- (b) if the property consists of a debt or legacy or interest payable on debt or legacy, by serving on the person liable to pay a notice directing him to pay the Administrator or to any person duly authorised to receive such payment;
- (c) if the property consists of stock or shares in a company, by informing the principal officer of the company that the stock or shares have vested in the Administrator.

(2) Where the Administrator or any person authorised by him in this behalf takes possession of any movable abandoned property including stock-in-trade, plant or machinery, he shall prepare an inventory in duplicate in the presence of not less than two respectable residents of the locality and shall give a copy of the inventory to the person from whom possession is taken or, in his absence, to one of the persons in whose presence the inventory is prepared.

(3) A record of all abandoned property attached or taken possession of shall be made in registers in such form as the Administrator may direct.

7. **Holding of inquiries, etc.**—(1) For the purposes of section 31 and for the framing, signing and verification of claims and in relation to proceedings involving holding of an inquiry and hearing an appeal or revision under the act the procedure laid down in the Code of Civil Procedure, 1908 (Act V of 1908) with the necessary modifications, shall be followed.

(2) The administrator when holding an inquiry, and the Board, when hearing an appeal or revision, shall have the same powers as are vested in a court

under the Code of Civil Procedure, 1908 (Act V of 1908), when trying a suit, in respect of the following matters, namely:—

- (a) calling for any public record from a court or office;
- (b) injunctions;
- (c) appointment of a guardian;
- (d) appointment of receivers;
- (e) attachment;
- (f) substituting the names of rightful claimants;
- (g) adding legal representative of deceased applicants or claimants; and
- (h) consolidation of cases.

8. Procedure and the time limit for submission of application under section 13.

(1) An application for confirmation under sub-section (2) of section 13 shall contain full particulars of the abandoned property, the name of the transferor and his present address, if known, the nature of the transaction sought to be confirmed, and consideration paid or deferred together with the date or dates on which paid.

(2) The application shall be presented within thirty days of the date of publication of notification under section 11 and shall be accompanied by a postal order of five rupees.

9. Procedure and time limit for submission of application under section 14.

(1) An application in relation to a claim under sub-section (1) of section 14 shall contain full particulars of the abandoned property, the nature of right or interest claimed therein, and the facts on which the claim is based.

(2) The application shall be presented within thirty days of the date of publication of notification under section 11 and shall be accompanied by a postal order of five rupees.

A. Power of Administrator to extend Time.—In any case in which the Administrator is satisfied that a person has not been able to present an application under rule 8 or rule 9 within the period specified in that rule, the Administrator may, for reasons to be recorded, accept the application after the expiry of the said period.]

- (a) by leaving it on the last known place of business or residence of the person concerned or giving or tendering it to some adult member of his family;
- (b) by sending it by registered post;
- (c) by affixing it on some conspicuous part of the premises concerned or at the last known place of business or residence of the person concerned;
- (d) by publication in a newspaper or proclamation by beat of drum in the locality.

11. Appeal and revision.—(1) An appeal under sub-section (1) of section 13 shall be presented within thirty days of the date of the order appealed against.

Added by S. R. O. No. 986 (1) 1975, dt. 17-9-1975.

(2) An application for revision under sub-section (3) of section 15 shall be made within thirty days of the date of the order sought to be revised.

(3) Every memorandum of appeal and every application for revision shall be in writing and shall set forth concisely the grounds on which the order appealed against, or sought to be revised, is attacked without any argument or narrative, and such grounds shall be numbered consecutively and the memorandum or application shall be signed and verified by the person presenting the same.

(4) Every memorandum of appeal and every application for revision shall be accompanied by a certified copy of the order appealed against or sought to be revised and shall be accompanied by a postal order of ten rupees.

12. Manner in which expenditure may be incurred.—(1) The Administrator may, subject to the provisions of sub-rules (2) and (3), incur expenditure, as far as possible in the following order, namely:—

(a) payment of all taxes, duties, cesses and rates and claims by Government departments outstanding against the specified person or payable in respect of any abandoned property belonging to him and vested in or taken possession of by the Administrator;

(b) payment towards such measures as may be taken to keep the abandoned property in good repair or carry on the business or undertaking of the specified person;

Provided that the cost of normal repair of any abandoned property shall not exceed ten per cent of the rent of such property;

(c) payment in respect of special repairs or completion of, or addition to, any building, or replacement or installation of machinery in any factory, belonging to the specified person;

Provided that such payment shall be charged to the capital value of the building or factory, as the case may be;

(d) payment in respect of demolition or dismantling of such abandoned property as cannot be repaired;

(e) payment towards costs of suit or other proceedings conducted on behalf of the specified person;

(f) payment of any sums due to any employee of the specified person;

(g) repayment of any debt due by the specified person to any person; and

(h) any other payment necessary in the discharge of his duty.

(2) in respect of payments under clauses (c) and (h) of sub-rule (1), the Administrator shall not incur expenditure exceeding Rs. 4,000 in regard to any particular unit or item except in accordance with such directions as the Board may, from time to time, give in this behalf.

(3) No payment shall be made unless the Administrator is satisfied as to the validity of the claim or the necessity of the requirement in respect of which payment is to be made.

(4) Where sufficient funds are not available to the credit of the specified person, payment may be deferred until funds are available, or, if the Administrator is of the opinion that payment cannot be so deferred, he may, subject to the provi-

by Sd/- 7/7/11/75, dt. 26-6-75 p. 1165.

Sd/- by Sd/- 26 372 (11) 86 dt. 9-4-86.

sions of the Act and these rules, make payment by resorting, as far as possible in that order, to one or more of the following means, namely :—

- (a) granting on the security of any abandoned property belonging to such specified person such loans as may be necessary from moneys held by the Administrator ; and
- (b) Appropriation of moneys held by the Administrator.

13. Investment of money held by the Administrator.—Any money of a specified person held by the Administrator and ~~not invested by him in accordance with clause (k) of sub-section (2) of section 16 shall be deposited into the treasury for credit to the banking deposit account opened in accordance with the rules applicable to the personal deposits~~

~~14. Administration fee.~~ ^{State +} Before any other expenditure is incurred in accordance with any of the provisions of the Act or these rules, a fee not exceeding 25 per cent of the gross income of proceeds from the abandoned property vested in or taken possession of by the Administrator shall be realised by the Administrator for purposes of Administration generally :

Provided that the fee in respect of any year shall be assessed on the gross income obtainable for that year if the property were to be leased and paid to the Administrator by the person who receives possession from the Administrator of such property.

15. Delegation of powers.—The Administrator may, by order, direct that all or any of his powers under the Act and the rules shall, subject to such conditions, if any, as may be specified in the order, be exercised also by such other officer or authority as may be so specified.

AFZALUR RAHMAN,
Deputy Secretary.